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AMONG THE ABRON AS AN INSTRUMENT
FOR THE LEGAL CONTROL
OF SOCIAL CHANGE



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THE TRADITIONAL JUDICIAL PROCESS
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Some recent sociological and neo-institutionalist theories have attempted to overcome the dualistic view of the relation between norm and action. They start out from a critical re-examination of the traditional empirical research on juridical phenomena and characterise law as a genuine system of communication. They point out the procedural and cyclical dimensions of the relation between social actions and norms, and the open and recursive character of both.

Many of these theories express a renewed and growing interest in procedure and in the issues connected with it. This has led to attention being focused on some basic problems: in the first place, on the distinction between evaluation of procedure and evaluation of its results.

Here we will avoid any reference to evolutionist perspectives, and adopt a broad concept of procedure. We mean by procedure a process of communication of meanings that are structured through the exchange of information between normative models and courses of action. Procedure is a cultural product that takes place according to precise rules and that produces a continuous restructuring of expectations.

If procedure — in our case the procedure for regulating and resolving conflicts — is examined from an historical point of view, the close connection between type of procedure, social structure and cultural models becomes clear.

Such an approach attributes a certain significance to the cul-

tural dimensions of law and to the forms of conditioning exerted by the more evident processes of change in the institutionalization of social action. It thus lends itself also to the analysis of the results of studies of a more specifically anthropological character; including, for example, studies relating to the persistent and widespread phenomenon of the survival of some traditional institutions in the modern States of sub-Saharan Africa.

In offering a contribution of this kind, I propose to draw on the experience amassed in the field relating to the specific case of the survival of traditional procedures for the resolution of conflicts among the *abron* ethnic group.

The *abron Chefferie Royale* is a combined political and judicial institution present in the geographical and cultural area corresponding to the north-eastern territory of the present-day State of Ivory Coast. It arouses interest not only due to its past characteristics, but also to the role it continues to play in the present day. Indeed this institution survived the colonial period almost intact, thanks to the strong martial identity of the *abron* people and to some strategies of preservation specific to *abron* culture. At the present time it preserves some of its distinctive traditional features, while at the same time showing a marked capacity for adaptation and innovation.

The Constitution ⁽¹⁾ of Ivory Coast makes no explicit provision for political and judicial institutions other than those of the State ⁽²⁾. In spite of that, the institution of sacred kingship persists, and the administration of justice by the traditional *abron* chief continues to be widespread. In order to achieve a single homogeneous system of the administration of justice throughout the whole national territory of Ivory Coast, numerous top-down processes of institutional modernisation have been attempted. Following indepen-

⁽¹⁾ Law n. 60-356 of 3 November 1960, amended by laws: 63-01 of 11/1/1963, 75-365 of 31/5/1975, 75-747 of 22/10/1975, 80-1038 of 1/9/1980, 80-1232 of 26/11/1980, 85-1072 of 12/10/1985, 86-93 of 31/1/1986 and 90-1529 of 6/11/1990.

⁽²⁾ In view of the widespread resistance to the suppression of the chefferie, the ministerial circulars 20/INT/DG/AT of 3/6/1976, 19/INT/AT/AG-1 of 19/7/1977 and 30/INT/AT/AG-1 of 6/10/1978, ask the prefects and sub-prefects to show some degree of toleration and cooperation with the traditional chiefs.

dence, for example, the *coutumier* tribunals were abolished and exclusive competence was assigned to the state courts (²).

From the present research it clearly emerged, however, that the *abron* chief continues largely to retain his traditional monopoly in the resolution of conflicts that arise between the members of the group he represents and for which he is responsible. In the exercise of this role the chief avails himself of the services of the council of elders, which assists and advises him whenever he has to rule on a dispute or take important decisions. Through the traditional judicial process the *abron* chief continues to spell out the law, and to control and guide the behaviour of the community under his rule. As a consequence, his role, though performed entirely without courts, tribunals, career judges, written codes and statute books, undoubtedly has juridical significance.

Here I propose to examine three aspects of the dispensation of justice by the *abron* chief that appear of particular interest:

A) The first concerns the connection between the new tasks that the traditional *abron* judicial process fulfils at the present time and the need for a constant reference to the cultural dimension. This connection is especially important in attempting to characterise the reciprocal process whereby the institutions reproduce social action and vice versa.

B) The second concerns the wider social structure in which the *abron* judicial process is set: more especially, the fact that the characteristics of the procedure by which justice is dispensed appear more comprehensible, if they are incorporated in an organisational framework in which the farmer represents the main economic activity; and if they are linked with a model of traditional culture and traditional values. An attempt will therefore be made to show the close connection between type of procedure, social structure and cultural models.

C) The third aspect concerns the chief as holder of legiti-

(²) The legal system was disciplined, apart from Titles VI, VII and VIII of the Constitution, by Law 61-155 of 18/5/1961, amended by Law 64-227 of 14/6/1964, which is the main legislative source on the matter. The organization of the Supreme Court was separately established by Law 78-663 of 5/8/1978. Cf. L. IDOT (ed.), 1991, Vol. II, pp. 358-370.

mate power and guarantor of the social order. Also as a consequence of the two previous aspects, the legitimacy of the chief is of decisive importance in the evaluation both of the correctness of the procedure and the justice of the result. The whole procedure for conflict resolution thus revolves around the fundamental figure of the traditional chief: so much so that he might be defined as a kind of living embodiment of the judicial process: he not only presides over, he *is* the process itself.

Let us look at each of these three aspects in turn.

As regards point A), the data collected in the field show that, from an anthropological point of view, the traditional *abron* judicial process seems to be definable, even at the present time, as an institution in the true sense of the term. It is a home-grown institution that continues to play a fundamental role in the contemporary history of the *abron* people and of the State of Ivory Coast. It has in fact become the hinge, the point of encounter, between two differently conceived and structured worlds.

In a long drawn-out process of social and cultural change, the traditional institutions tend to lose many of their functions. The traditional *abron* process, by contrast, not only survives, but is thriving as a focal point of resistance to the penetration of Western law and culture. Not only has it preserved some of its original functions, such as that of the allocation of resources, but has expanded others, such as that of initiation in traditional juridical knowledge and that of the perpetuation and diffusion of witchcraft beliefs. And it has also developed new functions, such as that of conferring identity by a combined reference to traditional norms and modern norms.

The new modes of production and exchange which have penetrated, albeit slowly and partially, also into *abron* society, combined with the introduction of a state legal system based on a law of rational, codified type, have created situations characterised by the co-presence of reciprocally incompatible systems. An example is that of hereditary succession. Both the kinship system and the economic organisation of *abron* society converge in this area; and in it have arisen, since time immemorial, the conflicts deriving from the contradiction between system of matrilineal familial system and patrilocal residence. Another constantly recurring problem in this

area at the present time is that of the juridical identification of the criteria for the allocation of resources, especially those of land tenure. For, in spite of the complete substitution by the State, at the juridical and formal level, of the rules of lineage in the ownership of land, there persists, in practice, a remarkable attachment to the traditional modes of allocation and exploitation. Already in the colonial period a conflict had emerged between the irrevocable character of sale and the relations that, according to tradition, are established between man and the land following the sacred alliance with his « invisible guardians »: the gods and spirits of the ancestors who were the first to occupy it. On the other hand, the State has tried to reconcile the processes of modernisation with local customs. This explains why it has made no provision for the purchase of land with full property rights, but limited itself to the concession of a right of utilization subordinated to the use that is effectively made of it ⁽⁴⁾.

The *abron* rules of succession provide for the transmission of status and goods according to the system of matrilineal filiation and in conformity with the norms that govern common property. These norms conflict with the principles of state law ⁽⁵⁾. State law, by contrast, does not recognise the bonds of lineage: it recognises instead individual ownership and a patrilineal system of property transmission. The fact that it is possible for the individual to submit claims to rules with different contents, which derive from different principles, exacerbates the tension and makes conflicts ever more numerous. These conflicts are resolved by the traditional jurisdiction through the introduction of new criteria of selection and decision.

The traditional chief and his council have in fact succeeded in establishing an effective rapport between these two types of jurisdiction, and permitting a kind of *cohabitation* between them, by a joint recourse to the rules of tradition and to the principles of state law. More specifically, the chief and his council have introduced the distinction between properties inherited through family ties and properties acquired during a person's life. The former are subject

⁽⁴⁾ Cf. the Landed Property Regime prescribed by Decree n. 71-74 of 16 February 1971: IDOT, 1991 Vol. I, pp. 55-56; Vol. II, pp. 395-396.

⁽⁵⁾ Cf. Law n. 64-379 and Law n. 64-380, both dated 7/10/1964.

to the identity structures established by kinship ties and are transmitted according to the rules of lineage; the latter, by contrast, are subject to property rights that may ignore kinship ties and are transmitted according to the provisions of state law.

In this way, the traditional *abron* process succeeds in reconciling different spheres of rationality in a culturally judicious way. One element of differentiation from modern law is in fact the « substantial » character of the rationality to which the role of the chief and his council conforms. Decisions, once reached, do not aim to achieve the highest degree of formal juridical correctness, but are each adapted to circumstances according to the principles of ethical equity in a substantial sense or on the basis of more practical and utilitarian needs.

In this sense, the decision of the chief may be considered based on a kind of rationality that is now defined « procedural »: in reaching his decision, the role of primary importance is assumed not by the greatest accumulation of knowledge, but by a synthesis between experience and decision-making, in such a way as to find the best form of adjustment to the needs of social change. The traditional *abron* judicial process represents, in fact, an attempt to harmonise tradition with the law of the postcolonial state. It is a means of reducing the complexity of social life, and permits conflicts to be channelled through a syncretised or pluralistic solution.

As regards point B), it should be pointed out first of all that the traditional *abron* system of justice is characterised by the survival of some features typical of a form of justice of ritual character. Judgement of the result of an action, for example, takes precedence over an evaluation of the motive or intention behind it. Sometimes recourse is had to supernatural trials: oaths, ordeals and divination. But the proceeding in which these aspects are incorporated leads to decisions that are the outcome of an interpretation of historically defined facts and actions. The result and its consequences are uncertain and the participants may follow alternative courses of action during the proceeding ⁽⁶⁾. To demonstrate the precedence of the re-

⁽⁶⁾ With regard to the difference between procedure and ritual identified by LUHMANN, 1995, pp. 52-33, the *abron* process may be considered a procedure in the true sense.

lation disputed and the legitimacy of any claim, the spelling out of genealogical lists is necessary. The dispute concerns not personal or congenital qualities, but quite precise kinship relations, situated in time and traceable back to the ancestors. This permits the elaboration of decision-making mechanisms that are juridical in so far as they are mediated by a norm and refer to tradition and to precedents ⁽⁷⁾.

The normative framework — the sum of normative myth, precept and precedent — to which the *abron* chief and his council refer in the traditional regulation of disputes is clearly differentiated from the ideal type of « rational codified law ». It is characterised, instead, by reference to the « law of the ancestors », sacred, orally-transmitted, and immutable in substance. Nonetheless, the action of the chief and his council cannot ignore the institutions of Islamic law ⁽⁸⁾, given the close relations with Muslims in social and commercial life. Nor can it dispense with state law, given the progressive, albeit still fairly limited, process of juridical acculturation.

The chief still receives today an education of traditional type, and his culture is linked to the fundamental notions of founder-ancestor and of mythic order. Such an « original order » is contained in the founder myth ⁽⁹⁾. Both this, and the other myths that have come to flank it in the course of time, not only express juridical norms, but provide a general normative framework. The main source of *abron* law is myth. Tradition also contains rules of customary origin expressed in proverbs and rules that derive from judicial decisions. Considered as a whole, therefore, tradition is not immutable. But the effective authority to innovate it is explicitly recognised to no one ⁽¹⁰⁾.

⁽⁷⁾ Cf. CORDERO, 1985, pp. 295-301, 310-321, 427-434.

⁽⁸⁾ The field in which the major conflicts between *Abrón* and Muslims take place is that relating to rights of succession, especially in the event of conversion. Cf. The Koran, IV, 7, 11, 12.

⁽⁹⁾ This is a narrative account that refers to the time of the origins, that explains the creation of the world and the cosmic order, and that describes and justifies in ethical terms the genesis of the group, the foundations of law and political power. It represents the archetype from which successive myths are developed.

⁽¹⁰⁾ Only the king may introduce new rules. These are considered legitimate and valid if they conform to the fundamental supernatural norms.

The social pressure exerted by the clan or kinship group acts as a curb on forms of behaviour that are contrary to tradition. Social cohesion is considered the indispensable condition for the individual's very survival, at both the material and spiritual levels. Individual and community action is guided by shared symbolic structures. These are interiorized through a gradual access to the daily interaction promoted by parents and family. The « significance » of fundamental social rules, of *abron* history and of the ancestral mysteries, is « explained » by the work of mediation by the « elders » between the symbolic structures and the world⁽¹¹⁾. This takes place, in particular, on the occasion both of initiation rites and of any other socialisation process. All this is closely linked with the fact that the transmission of knowledge is entirely assigned to oral tradition.

The maintenance of cultural cohesion is also fostered by the mainly collective organisation of work. Numerous transformations have been caused by colonialism and neo-colonialism; it is enough to think of the spread of wage-earning work and the introduction of cash crops such as coffee and cocoa. Yet *abron* agriculture still remains bound up both with the succession of the seasons and with structures of family or clan solidarity. The assistance provided by national and international aid organisations has had no perceptible improvement on work in the fields. This still takes place in very precarious climatic, financial and technological conditions. The difficulties that are their consequence are tackled and resolved by traditional forms of co-operation that exist both within the production unit represented by the extended family, and between the various units of production in the same village. The traditional values of co-operation and solidarity, moreover, have been revived by the so-called *Groupements à vocation coopérative*⁽¹²⁾.

⁽¹¹⁾ Membership of this category — i.e. the « elders » — is not vouchsafed merely by advanced age: also indispensable are such qualities as irreproachable conduct, great wisdom amassed through the experience of life and the various initiations, and a particular capacity to assimilate, memorize and transmit the fundamental values conveyed by tradition.

⁽¹²⁾ Cooperatives of farmers established on state initiative with a view to breaking the monopoly of the marketing of coffee and cocoa held by the Lebanese-Syrian community.

In this light we may consider another finding, which introduces point C). The data collected suggest that the *Abron* are aware of the existence of a system of state justice, but, as a rule, prefer, to have recourse to traditional justice. One of the main motives that justify this choice is the fact that the chief continues to be esteemed and respected more than any official of the state bureaucratic apparatus. The chief knows the disputants, their families and their history. This enables him to judge on the basis of concrete considerations of equity and of politico-social motives. But his prestige especially derives from the fact that he is considered the holder of legitimate power.

The legitimacy of the chief's power is born from faith in the validity of tradition. Only the power that derives from traditional sources, and that places itself in continuity with the power of the origins and with the mythic order, is sacred and legitimate and may be exercised. For that reason the chief may only acquire the status of representative of the group if: he is descended from the ancient warrior aristocracy; was enthroned following precise and appropriate rituals; shows particular skill in mobilizing the supernatural forces in favour of the community of which he is head; and acts in such a way that his conduct and decisions enjoy social consensus.

To this day, the *abron* conception of power and authority characterises the judicial process as an attempt to resolve conflicts in such a way as to produce consensus both among the disputing parties themselves and among the social group as a whole. Not even to the king himself does tradition attribute a peculiar decision-making, or judgmental, power of his own: each chief is considered as the agent of the will of the gods and of the ancestors that is expressed through the elders. For this reason the chief cannot express a judgement without first having listened to the disputants and all those who have a right to speak in the process. The collective participation in decision-making processes is also ensured by the presence of institutional organs of control and redress. In fact, each chief, including the king, may administer justice only if supported by a « council » formed by chiefs of a lower rank, elders and other leading exponents of the community of which he is head.

However, it is the chief who, in his role as representative of the community and mediator between the various cosmic forces,

embodies the procedure. He is the means through which both the parties in the dispute and the council express themselves. The chief establishes, promotes, animates, and channels the relations between the disputants, between the disputants and the council, and between the disputants and the community as a whole. If for whatever reason the chief is lacking, the proceeding can neither begin, nor continue, and the entire activity of the administration of justice grinds to a halt. This explains why each chief, at all the levels of the social pyramid, has his own judicial council. The type of questions examined changes, the procedure increases in severity and the ritual in importance, the higher one rises in the hierarchical scale. At the highest levels of this scale, in fact, the politico-judiciary power is differentiated from the conciliatory power of family or kinship type.

To use a terminology more comprehensible to the Western reader, it may be affirmed that the chief plays a role in part similar to that of an « investigating magistrate »: it is he who fixes the date of the process, who declares the proceedings open, who gathers the evidence and calls the witnesses, who opens the debate, who presides over it and who closes it. It is the job of the chief to specify and reaffirm the rules of the debate and the conditions that regulate the right to speak in it; this he does by reaffirming the distinction between those who have the right to make an accusation and those who have not. It is the chief who enjoys the privilege of speaking last and of ending the discussion. So it is he who chooses the right moment to declare that the solution has emerged, that the requisite decision may be unanimously adopted and that the process may be considered at an end.

Through the traditional judicial process the *abron* chief seems to achieve two objectives:

1. That of preserving the cultural heritage of the ancient *abron* people.
2. That of managing the simultaneous presence of a plurality of not always compatible systems of reference in the life of the community he represents.

The processes of transformation generated in *abron* society since the colonial period, and continued even after independence, have forced the *abron Chefferie royale* to open itself up and adjust to the more recent social needs. At the same time, the *Chefferie* has

had to seek new areas of intervention, in order to be able to defend and preserve its own cultural heritage. The traditional judicial process represents one of the most important occasions for reviving, and at the same time for preserving and reproducing, the collective memory. On the one hand, it retains its fundamental role of regulating and resolving social conflicts and, consequently, of restoring the general cosmic order. On the other, it further develops some of its own characteristics and acquires new tasks.

In the more recent period of *abron* history, the close relations that have always existed between administration of justice and witchcraft beliefs have tended to grow. This is also a consequence of the greater participation and involvement of the public in the proceedings. The traditional judicial process is increasingly becoming the privileged place in which witchcraft beliefs and the rites associated with them are preserved, reproduced and championed as a kind of « ideology » of resistance to the penetration of Western culture. Through the traditional judicial process, therefore, the *Chefferie royale* preserves its character as a system of reference and permits the *abron* people to give a stable and coherent sense to their own life, in such a way as to construct their own identity. Those who participate in it have the consciousness of forming a social identity. By continuously deconstructing and restructuring the system of essential needs and the rules of the game to satisfy them, they are able to generate new mechanisms of re-identification.

The reflexive aspects of the procedure are becoming further accentuated: it is increasingly assuming the role of initiation in mythic knowledge and in traditional culture as a whole. Each initiation generates a new social identity. The chief too, through his role of dispensing justice, controls the antagonistic relationship with the « outsiders » — formerly the colonial administration, now the post-colonial State — and operates continuous processes of differentiation that help to maintain the specific social identity of the *abron* people.

The procedure for the resolution of conflicts consists of a sum of rules, precepts, gestures and symbols. In creating and reproducing its own universe of reference, the *abron* judicial process is progressively becoming the privileged means by which the identity of its participants is shaped. It also represents the principal channel through which *abron* knowledge and culture is transmitted and re-

produced. The knowledge that emerges in the course of the proceeding does not consist merely of a sum of proverbial *savoir-faire*, of simple ritual prescriptions. It is the fruit of a long learning process in which a specific, and in part esoteric, hoard of knowledge is absorbed. Each typically initiatory form of knowledge is characterised by the fact that it is inapplicable outside the field in which it is acquired. Even at the level of the administration of justice, a sum of knowledge is transmitted that remains in some sense esoteric, in so far as it is encapsulated and condensed in proverbs. For this reason the action of the chief is often comprehensible in its profound sense only to a few initiates, and acquires validity and efficacy especially through « *l'action transitive de sa transmission rituelle* » (ZEMPLÉNI, BONTE, IZARD (eds.), 1992, p. 377). If he succeeds in administering justice with competence and equity, the chief shows he has reached a degree of knowledge and a development of personality such as to confer profound wisdom. Moreover, it is especially in the way he manages the procedure for the regulation and resolution of conflicts that the chief exercises and reinforces his own legitimacy as effective chief of the group, custodian of its tradition and guarantor of its social order. The action of the chief, in fact, represents the channel through which normative forms of behaviour of innovative type are specified and communicated, with a view to a more efficient adaptation to the new cultural dictates external to his own tradition.

As a stable and structured sum of rules, values, norms, roles, behavioural prescriptions and expectations that are developed round those aspects of social life that the *abron* people considers essential for their own survival, the traditional judicial process plays an indispensable role of controlling change and integration, and ensures a degree of social and cultural continuity.

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